



Jan. 8, 2018

Hon. John Gore
Acting Assistant Attorney General for Civil Rights
U.S. Department of Justice
950 Pennsylvania Ave., NW
Washington, DC 20530

Dear Acting Assistant Attorney General Gore:

The undersigned members and allies of the Consortium for Citizens with Disabilities (CCD) and the Collaboration to Promote Self Determination (CPSD) write to express concern about the Justice Department's recent withdrawal of a number of guidance and technical assistance documents concerning the Americans with Disabilities Act (ADA). CCD is the largest coalition of national organizations working together to advocate for federal public policy that ensures the self-determination, independence, empowerment, integration, and inclusion of children and adults with disabilities in all aspects of society. CPSD is a collaboration of national organizations representing people with disabilities and their family members advocating for major systemic reform of the nation's disability laws and programs so people with disabilities can become employed, earn competitive wages, live independently in inclusive communities, and rise out of poverty.

On December 21, 2017, the Department rescinded its "Statement on Application of the Integration Mandate of Title II of the Americans with Disabilities Act and *Olmstead v. L.C.* to State and local Governments' Employment Service Systems for Individuals with Disabilities," as well as nine other ADA technical assistance documents. The Statement, which was issued in 2016, described the obligations of states to administer their employment services for people with disabilities in the most integrated setting appropriate. Evidence-based supported employment services help people with disabilities secure and maintain competitive, integrated employment. They are critical to achieving the ADA's goals of independent living and economic self-sufficiency. The Statement reflected already established law in an area that is a top priority for the disability community – employment of people with disabilities.

We are extremely concerned about the withdrawal of this guidance document. While as the Department notes, the withdrawal “does not change the legal responsibilities of State and local governments under title II of the ADA, as reflected in the ADA, its implementing regulations, and other binding legal requirements and judicial precedent, including the U.S. Supreme Court’s Olmstead decision,” we are concerned that it sends the wrong signal to public entities and employment service providers about what is necessary to comply with the ADA’s integration mandate with respect to employment services. Indeed, some groups have incorrectly described the withdrawal as eliminating the applicability of the integration mandate to employment services. We are also concerned about whether the withdrawal of this guidance reflects a diminished concern by the Justice Department with ensuring that public entities provide employment services that allow people with disabilities to work in competitive integrated employment.

The vast majority of people with disabilities and their families want opportunities for competitive integrated employment. Most employment service providers are working to change their business models away from sheltered work and other segregated settings to competitive integrated employment, and almost all states have embraced an “employment first” approach reflecting that shift. The Department’s guidance was consistent with the priority the disability community has placed on enforcement of their civil right to work alongside and with the same conditions as their peers without disabilities. We urge the Department to continue its commitment to expanding competitive integrated employment opportunities for all people with disabilities as a critical way to fulfill the ADA’s goals of integration, independence, and economic self-sufficiency.

We are also concerned about the process by which the Department announced that it was withdrawing nine other technical assistance documents relating to the ADA. We were troubled to see so many documents suddenly withdrawn and removed from the Department’s website, with little explanation of the reasons for doing so. Guidance documents are important tools to educate all stakeholders about the requirements of the law in a clear fashion, and the withdrawal of these guidance documents in this manner has created confusion and misunderstanding.

Government transparency is critically important. If the Department plans to rescind, modify or replace any guidance or technical assistance documents in the future, we request that you ensure transparency and opportunities for public input in the process. For example, we believe the Department should provide advanced public notice before withdrawing or modifying such guidance documents, and an opportunity for stakeholders to provide input. If the Department is withdrawing a guidance document because it is out of date, it should explain the specific ways in which the document is outdated, and if it has been superseded by later guidance documents, the Department should explain that and provide a link to those later documents. In addition, the Department should create an online archive of guidance documents that have been withdrawn or

modified, so that the public can access those documents and understand what changes have been made and why.

Thank you for consideration of this very important matter. We would welcome the opportunity to discuss our concerns further. You can contact Jennifer Mathis, CCD Rights Task Force Co-chair (jenniferm@bazelon.org) or Alison Barkoff, CPSD Policy Advisor (abarkoff@cpr-us.org) with any questions or to follow up on our letter.

Sincerely,

Access Living (Illinois)

Achievement Services

ADAPT Montana

ADAPT of Texas

Advocacy Center of Louisiana

The Advocacy Institute

The Advocat Group

AIDS United

Alabama Disabilities Advocacy Program

American Association of People with Disabilities

American Association on Health and Disability

American Association on Intellectual and Developmental Disabilities

American Civil Liberties Union

American Council for the Blind

American Dance Therapy Association

American Foundation for the Blind

American Music Therapy Association

American Network of Community Options and Resources (ANCOR)

American Psychological Association

A Philip Randolph Institute

The Arc of Indiana

The Arc of Mississippi

The Arc of Nebraska

The Arc of the United States

The Arc of Washington

The Arc Wisconsin

Arizona Center for Disability Law

Association of Assistive Technology Act Programs

Association of People Supporting Employment First (APSE)

Association of Programs for Rural Independent Living

Association of University Centers on Disabilities

Atlas Techknowledge (Virginia)

Autism Society of America

Autistic Self Advocacy Network

Bazelon Center for Mental Health Law

Big Tent Coalition of Kansas

Boston Center for Independent Living

California Down Syndromes Advocacy Coalition

California Foundation for Independent Living Centers

California State Council on Developmental Disabilities

Center for Independence of Individuals with Disabilities

Center for Living and Working (Worcester, MA)

Center for Public Representation

Center for Reproductive Rights

CenterLink: The Community of LGBT Centers

Christopher and Dana Reeve Foundation

Clark County Developmental Disabilities Advisory Board

Colorado Association of People Supporting EmploymentFirst

Colorado Cross-Disability Coalition

Community Access

Community Legal Aid Society, Inc. (Delaware)

Community Vision

Connecticut Legal Rights Project

Council of Administrators of Special Education

Council for Learning Disabilities

The Daniel Initiative

Daybreak4Deaf, Inc.

Dayle McIntosh Center

DC Metro ADAPT

Disability Action for America

Disability Law Center of Alaska

Disability Law Center, Massachusetts P&A

Disability Law Center of Utah

disAbility Law Center of Virginia

Disability Law Colorado

disABILITY LINK (Georgia)

Disability Policy Consortium of Massachusetts

Disability Power and Pride

Disability Rights Arkansas

Disability Rights California
Disability Rights Center of Kansas
Disability Rights Center—New Hampshire
Disability Rights Connecticut
Disability Rights Education and Defense Fund
Disability Rights Florida
Disability Rights Idaho
Disability Rights Iowa
Disability Rights Legal Center
Disability Rights Maine
Disability Rights Maryland
Disability Rights Mississippi
Disability Rights Montana
Disability Rights Nebraska
Disability Rights New Jersey
Disability Rights New Mexico
Disability Rights New York
Disability Rights North Carolina
Disability Rights Ohio
Disability Rights Pennsylvania
Disability Rights South Dakota
Disability Rights Tennessee
Disability Rights Texas
Disability Rights Vermont, Inc.
Disability Rights Washington

Disability Rights of West Virginia

Disability Rights Wisconsin

Disabled Queers in Action

Down Syndrome Connection of the Bay Area

Employment Law Group, PLLC (Parkersburg, WV)

Epilepsy Foundation

Equality California

Equip for Equality

FORGE, Inc.

Freedom Resource Center for Independent Living, Inc. (North Dakota).

Georgia ADAPT

Georgia Advocacy Office

Gould Farm

Government Information Watch

Governor's Committee on Disability Issues and Employment (Washington)

Governor's Council on Disabilities and Special Education (Alaska)

Hawaii State Council on Developmental Disabilities

Helping Educate to Advance the Rights of Deaf communities (HEARD)

Independence*First* Milwaukee Wisconsin

Independent Living Center of the Hudson Valley

Indiana APSE

Indiana Disability Rights

Indiana Governor's Council for People with Disabilities

Interhab (Kansas)

Institute for Educational Leadership

Jewish Federations of North America
Jo Anne Simon, P.C. (Brooklyn, NY)
Job Squad, Inc.
Justice in Aging
KanCare Advocates Network
Kansas ADAPT
Kansas Advocates for Better Care
Kansas APSE
Kansas Council on Developmental Disabilities
The Kansas Developmental Disabilities Coalition
Kansas Developmental Disability Policy Consortium
Kentucky Protection & Advocacy Division
Lakeshore Foundation
Law Office of Ellen Saideman (Barrington, RI)
Law Office of Lainey Feingold (Berkeley, CA)
Leadership Conference for Civil and Human Rights
Learning Disabilities Association of America
Lisa P. Golan, Attorney at Law (Norcross, GA)
Living Independence Network Corp. (Idaho)
Louisiana Developmental Disabilities Council
Lutheran Services in America—Disability Network
Maine APSE
Maryland Developmental Disabilities Council
Massachusetts Developmental Disabilities Council
Mental Health America

Michigan Protection & Advocacy Service, Inc.

Mid-Minnesota Legal Aid/Minnesota Disability Law Center

Minnesota APSE

Minnesota Statewide Independent Living Council

Mississippi APSE

Missouri APSE

Missouri Developmental Disabilities Council

Montana Council on Developmental Disabilities

NAACP

National Academy of Elder Law Attorneys

National Alliance on Mental Illness

National Association of Councils on Developmental Disabilities

National Association of County Behavioral Health and Developmental Disability Directors

National Association of Nurses with Disabilities

National Association of Rights Protection and Advocacy

National Association for Rural Mental Health

National Association of State Directors of Developmental Disabilities Services

National Association of State Directors of Special Education

National Association of State Head Injury Administrators

National Center for Environmental Health Strategies, Inc.

National Center for Learning Disabilities

National Center for Transgender Equality

National Coalition for Asian Pacific American Community Development

National Coalition for Latinxs with Disabilities

National Coalition for Mental Health Recovery

The National Council for Incarcerated and Formerly Incarcerated Women and Girls

National Council on Independent Living

National Disability Institute

National Disability Rights Network

National Down Syndrome Congress

National Federation of the Blind

National Health Law Program

National Housing Law Project

The National Leadership Consortium

National LGBTQ Task Force

National Low Income Housing Coalition

National Multiple Sclerosis Society

National Partnership for Women and Families

National Rehabilitation Association

Native American Disability Law Center

Nebraska Planning Council on Developmental Disabilities

Nebraska Statewide Independent Living Council

NELA-GA

Nevada Governor's Council on Developmental Disabilities

New York Association on Independent Living

New York Association of Psychiatric Rehabilitation Services

North Carolina Council on Developmental Disabilities

North Dakota State Council on Developmental Disabilities

Not Dead Yet

Oklahoma Developmental Disabilities Council

Oregon Council on Developmental Disabilities
Paralyzed Veterans of America
Partnership for Inclusive Disaster Strategies
People First of Georgia
Personal Attendant Coalition of Texas
PolicyLink
Protection and Advocacy for People with Disabilities, Inc. (South Carolina)
Protection & Advocacy Project (North Dakota)
Quality Trust for Individuals with Disabilities
Rainbow PUSH Coalition
REV UP Texas
Rhode Island Disability Law Center
School Social Work Association of America
Silicon Valley Independent Living Center
Statewide Independent Living Council of Alaska
Smart Policy Works
Southern Poverty Law Center
Stavros Center for Independent Living
Syntiro
TASH
Tennessee Council on Developmental Disabilities
Texas Council for Developmental Disabilities
Texas Down Syndrome Advocacy Coalition
Topeka Independent Living Resource Center
Transformative Justice Coalition

Treatment Communities of America

Union for Reform Judaism

United Spinal Association

URGE: Unite for Reproductive and Gender Equity

University Center for Developmental Disabilities, Munroe-Meyer Institute for Genetics and
Rehabilitation, University of Nebraska Medical Center

Utah Developmental Disabilities Council

Vermont Developmental Disabilities Council

Virgin Islands Developmental Disabilities Council, Inc.

Virginia APSE

Virginia Board for People with Disabilities

West Virginia Developmental Disabilities Council

Wisconsin Board for People with Developmental Disabilities

Wisconsin Coalition of Independent Living Centers

Women Who Never Give Up, Inc.

Woodsmall Law Group, P.C.